

**SUPERIOR COURT OF CALIFORNIA
COUNTY OF VENTURA**

Tentative Ruling

**2024CUPP023718: JANE ROE, A MINOR BY AND THROUGH HER GUARDIAN AD
LITEM DIANDRA FRIENDS vs SANTA PAULA UNIFIED SCHOOL DISTRICT**

09/16/2026 in Department 42

**Motion to Quash Deposition Subpoena for Production of Business Records Issued to Oak
Grove Center**

Motion: Plaintiff Jane Roe's Motion to Quash Deposition Subpoena for Production of Business Records Issued to Oak Grove Center (*opposed*).

Tentative Ruling:

Plaintiff Jane Roe's Motion to Quash Deposition Subpoena for Production of Business Records Issued to Oak Grove Center is DENIED.

Defendant may directly seek records from the Custodian for Oak Grove Center.

Notice to be provided by Defendant.

Discussion:

On July 24, 2026, Defendant served the Custodian of Records for Oak Grove Center a subpoena requesting production of the following records, for production on August 21, 2026:

1. Any and all educational records relating to ____ including but not limited to transcripts, report cards, records of disciplinary referrals, behavioral incidents, detention records, suspension records (in-school and out-of-school), incident reports, witness statements, investigative materials maintained by the school, communications with parents or guardians concerning disciplinary issues, and records reflecting disciplinary actions taken or considered.

Plaintiff objected to the subpoena based on the following grounds:

1. Fails to describe the documents sought with reasonable particularity;
2. Is overly broad in time and scope in that it seeks any and all medical and billing records of any kind not directly related to the current case;
3. Is not reasonably calculated to lead to the discovery of admissible evidence and therefore seeks documents that are beyond the scope of permissible discovery;
4. Fails to comply with the notice and service requirements established by the California Code of Civil Procedure; and
5. Seeks information protected by _____ Constitutional Right to Privacy.

"The state Constitution expressly grants Californians a right of privacy. (Cal. Const., art. I, § 1.) Protection of informational privacy is the provision's central concern. [Citation]. In *Hill*, we established a framework for evaluating potential invasions of privacy. The party asserting a privacy right must establish a legally protected privacy interest, an objectively reasonable expectation of privacy in the given circumstances, and a threatened intrusion that is serious.

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[Citation]. The party seeking information may raise in response whatever legitimate and important countervailing interests disclosure serves, while the party seeking protection may identify feasible alternatives that serve the same interests or protective measures that would diminish the loss of privacy. A court must then balance these competing considerations.” (*Williams v. Superior Court* (2017) 3 Cal.5th 531, 552.)

“In determining whether one has waived the right of privacy by bringing suit, our Supreme Court has noted that although there may be an implicit partial waiver, the scope of such waiver must be narrowly, rather than expansively construed, so that plaintiffs will not be unduly deterred from instituting lawsuits by fear of exposure of private activities. [Citations]. An implicit waiver of a party's constitutional rights encompasses only discovery directly relevant to the plaintiff's claim and essential to the fair resolution of the lawsuit. [Citation]. There must be a compelling and opposing state interest justifying the discovery. [Citation]. Even when discovery of private information is found directly relevant to the issues of ongoing litigation, it will not be automatically allowed; there must then be a careful balancing of the compelling public need for discovery against the fundamental right of privacy. [Citation]. The scope of any disclosure must be narrowly circumscribed, drawn with narrow specificity, and must proceed by the least intrusive manner.” (*Davis v. Superior Court* (1992) 7 Cal.App.4th 1008, 1014.)

Plaintiff's Motion to Quash describes Oak Grove Center as a residential treatment facility in Murrieta, California, where Plaintiff received mental treatment following the abuse. Oak Grove Center is a residential program and children placed there also receive their schooling on site.

“In considering the first of the three factors comprising the threshold inquiry, it is clear that patients ‘have a bona fide interest in the confidentiality of their [medical] information.’ [Citation].” (*County of Los Angeles v. Superior Court* (2021) 65 Cal.App.5th 621, 641.) Further, “it [is] clear that patients have ‘a reasonable expectation of privacy under the [particular] circumstances.’ [Citation].” (*Id.* at p. 643.) Finally, privacy interests in psychiatric records is particularly strong and in some respects entitled to more robust protections. (*Id.* at p. 645.)

The subpoena seeks records from Oak Grove Center that involve mental health treatment to Plaintiff following the abuse. The records at issue include a legally protected privacy interest, an objectively reasonable expectation of privacy and a serious intrusion of the privacy interest.

Plaintiff's Second Amended Complaint has pleaded mental pain and suffering. In addition, Plaintiff's responses to form interrogatories attribute mental and emotional injuries to the incident. Defendant explains: “The District must conduct discovery on how Plaintiff's claimed injuries have affected her. That includes how Plaintiff has been affected on a behavioral level, how her educational attainment may have been affected, and the effect any counseling or treatment that may have been provided to Plaintiff has had on Plaintiff's injuries. Records of such matters are bound to be included in Plaintiff's educational records, particularly where the educational records are in the possession of one of Plaintiff's mental health treatment providers.” (Sampson Dec., ¶ 9.)

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Based on the Defendant's stated reason, the allegations in the SAC and responses to discovery, the documents at issue are directly related to Plaintiff's claim. Defendant has shown a compelling need for the documents requested.

The Court then proceeds to balance the interests of the parties to determine whether disclosure should be made. Plaintiff maintains she already provided Defendant with her complete treatment records from Oak Grove, as a result, there is no additional privacy interest to protect. Plaintiff seeks to prevent Defendant from subpoenaing the records directly from the Custodian of Oak Grove. There is no justifiable reason to prevent this disclosure. Defendant has a right to obtain the records directly from the Custodian of Records from Oak Grove Center.

The motion to quash is denied.